

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 762

BY EDUCATION COMMITTEE

AN ACT

RELATING TO EDUCATION; AMENDING SECTION 33-5206, IDAHO CODE, TO REVISE PROVISIONS REGARDING ADMISSION PROCEDURES AT PUBLIC CHARTER SCHOOLS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 33-5206, Idaho Code, be, and the same is hereby amended to read as follows:

33-5206. REQUIREMENTS FOR OPERATING A PUBLIC CHARTER SCHOOL. (1) A public charter school shall be nonsectarian in its programs, affiliations, admission policies, employment practices, and all other operations, shall not charge tuition, levy taxes, or issue bonds, and shall not discriminate against any student on any basis prohibited by the federal or state constitution or any federal, state, or local law. Public charter schools shall comply with the federal individuals with disabilities education act. Admission to a public charter school shall not be determined according to the place of residence of the student or of the student's parent or guardian within the district.

(2) No board of trustees of a public school district may require:

(a) Any employee of the school district to be involuntarily assigned to work in a public charter school; or

(b) Any student enrolled in the school district to attend a public charter school.

(3) Employment of charter school teachers and administrators shall be on written contract.

(4) Administrators may be certified pursuant to the requirements set forth in chapter 12, title 33, Idaho Code, pertaining to traditional public schools or may hold a charter school administrator certificate, which requires that the administrator:

(a) Holds a bachelor's degree from an accredited four (4) year institution;

(b) Submits to a criminal history check as described in section 33-130, Idaho Code;

(c) Completes a course consisting of a minimum of three (3) semester credits in the statewide framework for teacher evaluations, which shall include a laboratory component;

(d) Submits a letter of support from a charter holder; and

(e) Has one (1) or more of the following:

(i) Four (4) or more years of experience administering a public charter school;

(ii) A postbaccalaureate degree and a minimum of five (5) years of experience in school administration, public administration, business administration, or military administration;

(iii) Successful completion of a nationally recognized charter school leaders fellowship; or

(iv) Four (4) or more years of teaching experience and a commitment from an administrator at a charter school in academic, operational, and financial good standing, according to its authorizer's most recent review, to mentor the applicant for a minimum of one (1) year.

(5) A charter school administrator certificate is valid for five (5) years and renewable thereafter. Administrators shall be subject to oversight by the professional standards commission. Certificates may be revoked pursuant to the provisions of section 33-1208, Idaho Code. Issuance of a certificate to any applicant may be refused for such reason as would have constituted grounds for revocation.

(6) Certified teachers in a public charter school shall be considered public school teachers. Educational experience shall accrue for service in a public charter school and be counted by any school district for any teacher who has been employed in a public charter school. The staff of the public charter school shall be considered a separate unit for the purposes of collective bargaining.

(7) Charter school teachers may be certified pursuant to the requirements set forth in chapter 12, title 33, Idaho Code, pertaining to traditional public school districts or may hold a charter school-specific teaching certificate.

(a) Criteria for a charter school-specific teaching certificate shall be in writing and require that teachers satisfy the provisions set forth in section 33-1202 1., 3., and 4., Idaho Code, and meet the following minimum educational or professional qualifications:

(i) Hold a bachelor's degree from an accredited institution; or

(ii) If instructing students in the fields of career technical education, satisfy the provisions of section 33-2205(6)(a), Idaho Code. Career technical education programs taught by teachers with a charter school-specific teaching certificate shall receive added-cost funding set forth in section 33-2215, Idaho Code, in an amount equal to programs taught by teachers with an occupational specialist teaching certificate.

(b) Teachers with a charter school-specific teaching certificate shall receive mentoring and professional development as approved by the charter holder.

(c) The state board of education shall issue charter school-specific teaching certificates to teachers upon recommendation of the individual charter school, unless denied on the grounds set forth in section 33-1208, Idaho Code.

(d) For teachers holding a charter school-specific teaching certificate, a charter school may substitute its own ongoing education and professional development requirements in place of those set forth in rule by the state board of education if the same number of credit hours is required as that of teachers holding a standard instructional certificate.

(8) Public charter schools may contract with educational services providers subject to the following provisions:

1 (a) Educational services providers shall be third-party entities separate from the public charter schools with which they contract and shall
2 not be considered governmental entities, provided that such contracts
3 may be evaluated by the authorizer;

4 (b) No more than one-third (1/3) of the public charter school's board
5 membership may be comprised of nonprofit educational services provider
6 representatives. Nonprofit educational services provider repre-
7 sentatives may not be employees of the public charter school or the
8 educational services provider and may not hold office as president or
9 treasurer on the public charter school's board. For-profit educational
10 services providers may not have representatives on the public charter
11 school's board of directors;

12 (c) Charter holders shall annually disclose any existing and potential
13 conflicts of interest, pecuniary or otherwise, with affiliated educa-
14 tional services providers;

15 (d) Charter holders shall retain accountability for academic, fiscal,
16 and organizational operations and outcomes of the school and may not re-
17 linquish this responsibility to any other entity;

18 (e) Contracts must ensure that school boards retain the right to termi-
19 nate the contract for failure to meet defined performance standards af-
20 ter notice and a reasonable cure period has expired and if material de-
21 ficiencies have not been cured prior to that time period expiring;

22 (f) Contracts must ensure that assets purchased by educational ser-
23 vices providers on behalf of the school, using public funds, shall
24 remain assets of the school. The provisions of this paragraph shall
25 not prevent educational services providers from acquiring assets using
26 revenue acquired through management fees;

27 (g) Charter holders shall consult legal counsel independent of the
28 party with whom they are contracting for purposes of reviewing the
29 school's management contract and facility lease or purchase agreements
30 to ensure compliance with applicable state and federal law, including
31 requirements that state entities not enter into contracts that obligate
32 them beyond the terms of any appropriation of funds by the state legis-
33 lature;

34 (h) Charter holders must ensure that their facility contracts are sepa-
35 rate from management contracts; and

36 (i) A virtual school shall be deemed financially sufficient if there is
37 an agreement that requires an educational services provider to assume
38 the virtual school's financial risk when it does not have sufficient
39 residual funds to pay the educational services provider. Where this
40 paragraph is applicable, the educational services provider shall make
41 its audited financial statements available, unless the educational
42 services provider already makes such audited financial statements pub-
43 licly available for compliance with other federal or state laws.

44 (9) Admission procedures, including provision for over-enrollment,
45 shall provide that the initial admission procedures for a public charter
46 school will be determined by lottery or other random method, except as oth-
47 erwise provided in this section. A charter holder shall strive to ensure
48 that citizens in the primary attendance area are made aware of the enrollment
49 opportunities and deadline. The public notice must include the enrollment
50

deadline, the public charter school's total enrollment capacity for the next school year, and an advisory that all prospective students will be given the opportunity to enroll in the public charter school regardless of race, color, national origin, ethnicity, religion, gender, socioeconomic status, or special needs.

(a) (i) If initial capacity is insufficient to enroll all pupils who submit a timely application, then the admission procedures may provide that preference shall be given in the following order: ~~first, to~~

1. To children of founders, provided that this admission preference shall be limited to not more than ten percent (10%) of the capacity of the public charter school; ~~second, to~~

2. To siblings of pupils already selected by the lottery or other random method, including children in foster care, as that term is defined in section 16-1602, Idaho Code, who are placed in a home with pupils already selected by the lottery or other random method; ~~third, to~~

3. To the following in any order chosen by the public charter school:

(A) To children of families with at least one (1) parent or legal guardian who is on active duty or on active guard and reserve duty, as those terms are defined in 10 U.S.C. 101;

(B) To pupils seeking to transfer from another Idaho public charter school or authorizer at which they have been enrolled for at least one (1) year, provided that this admission preference shall be subject to an existing written agreement for such preference between the subject charter schools or authorizer; ~~fourth, to and~~

(C) To students residing within the primary attendance area of the public charter school; and ~~fifth, by~~

4. By an equitable selection process such as a lottery or other random method.

(ii) A public charter school may weight the school's lottery to preference admission for the following educationally disadvantaged students: students living at or below one hundred eighty-five percent (185%) of the federal poverty level, students who are homeless or in foster care, children with disabilities as defined in section 33-2001, Idaho Code, students with limited English proficiency, and students who are at-risk as defined in section 33-1001, Idaho Code. A public charter school may include the children of full-time employees of the public charter school within the first priority group, subject to the limitations therein.

(b) If capacity is insufficient to enroll all pupils who submit a timely application for subsequent school terms, then the admission procedures may provide that preference shall be given in the following order: first, to pupils returning to the public charter school in the second or any subsequent year of its operation; and then as provided in para-

graph (a) of this subsection. The sibling preference in subsequent school years applies to siblings of a returning pupil and of a pupil selected by the lottery or other random method. A new lottery shall be conducted each year to fill vacancies that become available. A public charter school may weight the school's lottery to preference admission as provided in this paragraph and paragraph (a) of this subsection and for children who attended the public charter school within the previous three (3) school years but withdrew as a result of the relocation of a parent or guardian due to an academic sabbatical or an employer or military transfer or reassignment.

(c) Each public charter school shall establish a process under which a child may apply for enrollment or register for courses, regardless of where such child resides at the time of application or registration, if the child is a dependent of a member of the United States armed forces who has received transfer orders to a location in Idaho and will, upon such transfer, reside in an area served by the public charter school. If capacity is insufficient as described in paragraph (a) or (b) of this subsection, a child described in this paragraph shall be treated as a student residing within the primary attendance area of the public charter school for purposes of preference. Otherwise, such children shall be included in the highest priority group for which they would otherwise be eligible.

(d) Admission to a public charter school shall be determined by a selection process held within seven (7) days of the enrollment deadlines established by the charter holder. The selection process must take place in a public setting, the date and time of which must be noticed to the public at least forty-eight (48) hours in advance.

(e) Within seven (7) days after conducting the selection process, the charter holder shall send an offer to the legal guardian who submitted a written request for admission on behalf of a student notifying such person that the student has been selected for admission to the public charter school. An offer must be signed by such student's parent or guardian and returned to the public charter school by the date designated in such offer letter. Remaining students shall be notified that they may be eligible for admission at a later date if a seat becomes available.

(f) If a school exceeds its projected student count in a lottery and a sufficient wait list exists, the school may increase enrollment by adding additional students per grade, not to exceed the total amount of students authorized by the charter.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.